Customs and Excise (Suspension) (Amendment) Regulations, 2025 (No. 284)

IT is hereby notified that the Minister of Finance, Economic Development and Investment Promotion has, in terms of section 235 as read with section 120 of the Customs and Excise Act [*Chapter 23:02*], made the following regulations:—

1. These regulations may be cited as the Customs and Excise (Suspension) (Amendment) Regulations, 2025 (No. 284).

2. These regulations shall come into effect on 1st January, 2026.

3. The Customs and Excise (Suspension) Regulations, 2003, published in Statutory Instrument 257 of 2003 (hereinafter called "the principal regulations"), are amended in section 9K ("*Suspension of duty on specified motor vehicles imported by safari operators*") by the deletion of the words "With effect from the 1st January, 2024, and for a period of two years up to 31st December, 2025" and substitution with "With effect from the 1st January, 2026 and for a period of two years up to 31st December, 2027."

4. The principal regulations are amended by the deletion of Section 9HH and substitution of the following—

"*9HH Suspension of duty on of public service buses imported by approved importers*

(1) In this section—

"approved importer" means a bus operator who satisfies the conditions stated to qualify for the suspension under this section;

"public service bus" means new buses of commodity code 8702.10.11; 8702.90.11 and 8702.40.00, with a sitting capacity of at least sixty passengers being imported or removed in bond by an approved importer.

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(2) Customs duty shall be suspended on importation of public service buses imported by approved importers in terms of this section.

(3) Approved importers shall, with effect from 1st January, 2026, be allowed to import public service buses of a sitting capacity of at least sixty passengers under suspension of duty as provided for in this section if the approved importer—

(a) is registered with the Zimbabwe Revenue Authority;

(b) has a valid tax clearance certificate.

(4) An approved importer shall, when effecting entry on importation, or on removal from bond of a public service bus under suspension, submit with the relevant bill of entry a declaration signed by him or her, to the effect that the public service bus is to be used for transporting persons in line with the approved importer's public transportation business.

(5) Any public service bus imported under this section shall be imported in the name of the approved importer.

(6) Subject to this section, the effective rate of duty shall be—

(a) ten *per centum* for new buses of commodity code 8702.10.11 and 8702.90.11; and

(b) zero *per centum* for new buses of commodity code 8702.40.00.

(7) Subject to subsections (8) and (9) an approved importer shall not dispose of any public service bus cleared under this suspension of duty within five years of importation, unless—

(a) written authority of the Commissioner is obtained; or

(b) payment of the duty suspended in accordance with this section has been made.

(8) The Commissioner may authorise the disposal of a public service bus on payment of such duty, not exceeding the amount of duty suspended, as he or she thinks fit, if, in his or her opinion, the public service bus cannot be economically used for the purpose for which it was entered under suspension.

(9) Duty suspended on a public service bus, which is accidentally destroyed before being used in the approved importer's business may be remitted if the Commissioner is satisfied that every reasonable effort was made and precaution taken to prevent its destruction.".

5. The principal regulations are amended in section 9JJ ("*Suspension of duty on specified buses imported by tour operators*") by the deletion of the words "With effect from the 1st January, 2024 and for a period of two years up to 31st December, 2025" and substitution with "With effect from the 1st January, 2026 and for a period of two years up to 31st December, 2027."

6. The principal regulations are amended by the insertion of new sections after section 9QQ as follows—

"9RR. Suspension of duty on Semi-Knocked Down (SKD) motor vehicle kits imported by approved operators and used in the assembly of passenger motor vehicles

(1) Customs duty is suspended with effect from 1st January, 2026 on SKD on motor vehicle kits imported by approved operators for use in the assembly of passenger motor vehicles in terms of this section.

(2) In this section—

"approved operator" means any person who is registered as an assembler of passenger motor vehicles in terms of subsection (6) for the purposes of this section;

"Form" means the appropriate form referred to in the Schedule to this section;

"Semi-Knocked Down (SKD) passenger motor vehicle kits" means assembly kits for motor vehicles described under tariff code 8702.10.11; 8702.10.20; 8702.20.00; 8702.30.00; 8702.40.00; 8703.40.00; 8703.50.00; 8703.60.00 being imported by an approved operator entirely for completion of the process of assembling passenger motor vehicles.

(3) All forms required in terms of this section and copies thereof shall be completed indelibly in a legible manner.

(4) An officer may refuse to accept any form if he or she considers that any part of it is illegible or that it has not been properly completed.

(5) Subject to this section, a suspension of duty shall be granted on SKD passenger motor vehicle kits imported or taken out of bond by an approved operator for use in the assembly of passenger motor vehicles.

(6) No suspension of duty shall be granted on built-up passenger motor vehicle bodies.

(7) Subject to this section, the approved operator shall import the SKD passenger motor vehicle kits at a rate of duty of zero percent (0%) *ad valorem*.

(8) Any person who wishes to claim a suspension of duty in terms of this section shall apply to the proper officer in Form MVAS 1 for registration as an approved operator.

(9) An application referred to in subsection (8) shall be supported by such additional information or documents as the Commissioner may require and shall be made before the importation or removal from bond of any SKD passenger motor vehicle kits intended for passenger motor vehicle assembly.

(10) On receipt of an application in terms of this section the proper officer shall, before referring the application by the Commissioner, inspect the premises and machinery of the person

making the application and report his or her findings to the Commissioner.

(11) If the Commissioner approves the application, he or she shall call on the person making the application to—

(a) erect on his or her premises the stores provided for in subsection (23) of this section;

(b) enter into a bond in Form No. 150, with sufficient surety in an amount determined by the Commissioner, for the securing of the suspended duty and compliance with the requirements of this section.

(12) When the application has complied with the requirements of subsection (11) to the satisfaction of the Commissioner, the Commissioner shall register the person as an approved operator.

(13) The Commissioner may reject an application for registration if he or she is of the opinion that—

(a) adequate control of SKD passenger motor vehicle kits imported or taken out of bond under suspension of duty is not likely to be maintained; or

(b) any provisions of this section will not be complied with.

(14) The Commissioner shall approve approved operators for the purpose of this section.

(15) The Commissioner may not grant a suspension of duty to a person making an application on the basis of non-compliance with section 34C of the Revenue Authority Act [*Chapter 23:11*].

(16) SKD passenger motor vehicle kits shall be admitted under suspension only if—

(a) the approved operator has furnished the Commissioner with—

(i) a complete specification of each model of any passenger motor vehicle which the approved operator proposes to assemble; and

(ii) a comprehensive description of the SKD passenger motor vehicle kits which are to be used in the assembly of each model of passenger motor vehicle; and

(b) the process of assembly of each model has been approved by the Commissioner using either—

(i) the process of assembly from the supplier; or

(ii) a summarised process of assembly followed by a complete process of assembly once a number of units have been assembled.

(17) An approved operator shall not, without the prior approval of the Commissioner, substantially alter the process of assembly approved in terms of paragraph (b) of subsection (16).

(18) Subject to subsection (19), SKD passenger motor vehicle kits shall not be admitted under suspension unless each consignment of such kits is, on importation into Zimbabwe, packed so as to contain the exact quantities to complete the models whose specifications have been furnished to the Commissioner in terms of subsection (16) and which are referred to in the invoice relating to that consignment.

(19) SKD passenger motor vehicle kits which were wrongly supplied or which have been damaged may be admitted under suspension if the Commissioner is satisfied that they were so wrongly supplied or damaged.

(20) SKD passenger motor vehicle kits imported otherwise than in accordance with subsection (18) may be admitted under suspension if the Commissioner is satisfied that there has been substantial compliance with that paragraph in any particular case.

(21) SKD passenger motor vehicle kits to be entered under the suspension of duty provided for in this section shall be entered for consumption at the port of entry nearest to the approved operator's business.

(22) An approved operator shall, when effecting entry on importation, or on removal from bond of SKD passenger motor vehicle kits intended for assembly under this suspension, submit with the relevant bill of entry a declaration signed by him or her to the effect that the said SKD passenger motor vehicle kits are to be used solely in the assembly of passenger motor vehicles.

(23) The approved operator shall provide on its premises secure stores for the safe storage of SKD passenger motor vehicle kits on which duty has been suspended and shall, at its own expense, provide the necessary fastenings so that the stores may be secured with customs locks.

(24) No SKD passenger motor vehicle kits with duty suspension may be stored elsewhere than in the stores provided for in subsection (23), and no such store shall, without the prior written permission of the Commissioner, be used for any other purpose other than for the storage of SKD passenger motor vehicles kits.

(25) An approved operator shall keep a stock-book in a form approved by the Commissioner, showing full particulars of all receipts and disposals of SKD passenger motor vehicle kits entered for the assembly of passenger motor vehicles in such a manner that the suspended SKD passenger motor vehicle kits can readily be accounted for to the satisfaction of the Commissioner.

(26) If an approved operator fails to keep a stock book in the manner approved in terms of subsection (25), any suspended SKD passenger motor vehicle kits received by the approved operator during the period when the stock-book was not so kept shall be deemed to have been used for a purpose other than that for which the suspension was granted unless the approved operator satisfies

the Commissioner that the suspended SKD passenger motor vehicle kits were used for the purpose for which the suspension was granted.

(27) The stock-book and premises of an approved operator shall be open for inspection by an officer at any time.

(28) Subject to subsection (29) and (30) an approved operator shall not, except with the written authority of the Commissioner, and on payment of the duty suspended, dispose of any SKD passenger motor vehicle kits otherwise than in accordance with this section.

(29) The Commissioner may authorise the disposal of suspended SKD passenger motor vehicle kits on payment of such duty, not exceeding the amount of duty suspended as she or he thinks fit, if, in the opinion of the Commissioner, the SKD passenger motor vehicle kits cannot be economically used for the purpose for which they were entered under suspension.

(30) An approved operator shall, when required by the Commissioner to do so, carryout under the supervision of an officer, at such time as the Commissioner may consider necessary, any assembly operation in which SKD passenger motor vehicle kits entered under suspension are used.

(31) Duty on suspended SKD passenger motor vehicle kits which are accidentally destroyed before being used in the assembly of passenger motor vehicles may be remitted if the Commissioner is satisfied that every reasonable effort was made and precaution taken to prevent their destruction.

(32) The Commissioner may cancel or suspend the registration of an approved operator if such approved operator—

(a) ceases to assemble passenger motor vehicles; or

(b) fails to comply with or contravenes any of the provisions of these regulations; or

(c) so requests.

(33) If any registration is cancelled in terms of paragraph (a) of subsection (32), any duty suspended shall immediately become due and payable.

SCHEDULE *(Section 9RR)*

In terms of section 5(2) of the Interpretation Act [*Chapter 1:01*], the stated forms are not published in these regulations. They may be inspected free of charge at the offices of the Zimbabwe Revenue Authority, Harare, or at any of the offices of the Zimbabwe Revenue Authority in any region.

9SS. Suspension of duty on goods for the mining industry

(1) With effect from 1st January 2026, subject to this section and such other conditions as the Commissioner may specify, customs duty is suspended on the following articles when imported or taken out of bond or purchased from the licensed premises of a manufacturer by a person engaged in the mining industry—

(a) eucalyptus, pine and other oils for use in the extraction of gold and other minerals by the flotation process;

(b) chemical substances, other than spirits, methylated spirits, fuel oils, lubricants and nitrate of lead, for use in any process for the concentration or refining of ore, or for assay or research purposes;

(2) The importer or the person taking the goods out of bond or purchasing the goods direct from the licensed premises of a manufacturer shall—

(a) sign a declaration in the body of the relative bill of entry to the effect that the articles will be used solely for the purpose for which the suspension is granted; and

(b) give an undertaking that if any of the goods are sold or otherwise disposed of the duty suspended will be paid forthwith to the Commissioner.

(3) Any person who obtains goods under the suspension in terms of this section shall keep a book showing the particulars of receipt and disposals of all goods on which the suspension is granted.

9TT. Suspension of duty on materials to be used in the preparation and packaging of fresh produce for export

(1) With effect from the 1st January, 2026, and subject to this section, customs duty is suspended on such materials as the Commissioner may approve when such materials are imported to be used in the preparation and packaging of fresh produce for export by a person or organisation approved by the Commissioner.

(2) A person or organisation wishing to claim a suspension of duty, in terms of this section, shall make application, in writing to the Commissioner for approval, and shall submit particulars of the materials which are to be imported under suspension together with evidence of his or her intention to export the packaging produce.

(3) The person or responsible officer of an organisation approved by the Commissioner shall, when importing the materials under suspension—

(a) sign a declaration to the effect that the materials are to be used in the preparation and packaging of fresh produce for export; and

(b) give an undertaking that if the materials are not so used or if for any reason the produce is not exported, such duty, as has been suspended on the materials will be paid to the Commissioner.

9UU. Suspension of duty on parts and accessories of certain public transport type passenger vehicles

(1) Subject to this section and to such conditions as the Commissioner may fix, a suspension of customs duty shall with effect from the 1st January, 2026, be granted on parts and accessories of any public transport type passenger vehicle with a seating capacity of ten or more persons (including the driver) of the tariff subheading 8702.

(2) No suspension shall be granted in terms of this section unless the Zimbabwe Revenue Authority issues to the person seeking the suspension a certificate to the effect that the parts and accessories concerned are imported for the purpose of repairing or refurbishing any public transport type passenger vehicle referred to in subsection (1).".